NewsBank inc.

State lawyers worry about outsourcing Trump legal fight

January 7, 2025 | Sacramento Bee, The (CA)
Author: William Melhado; Staff Writer | Section: News | 1484 Words
Page: 1A
OpenURL Link

The union representing state attorneys has concerns about how the California Attorney General's Office could spend the $25 million it is expected to receive to prepare the state for anticipated legal fights with the incoming Trump administration.

Gov. Gavin Newsom immediately called for a special session to boost the Justice Department's budget days after Donald Trump won a second term. The proposed budget increase is before lawmakers now.

After the attorney general's office hired a private law firm to help take on big oil companies, the union fears that the state might tap outside counsel to handle other, high-profile cases against Trump.

The labor group alreadyunsuccessfully disputed the contract with a private law firm hired in 2023to work on a "monster" climate change lawsuit, but the state attorneys' union said it would challenge any future attempts by the Justice Department to contract with private firms.

"If we see any hiring of outside counsel for the Trump cases, we're going to go after each and every one of them," said Timothy O'Connor, the president of the union, the California Attorneys, Administrative Law Judges and Hearing Officers in State Employment.

Attorney General Rob Bonta's office said it would not disclose potential legal strategies in sharing how the money would be spent.

During Trump's first term, from 2017 to 2021, the state increased the attorney general's office's budget to accommodate a surge in cases between the Golden State and the federal government. The Justice Department received an annual $6.5 million budget increase to pay for 31 additional positions in the Legal Services Division.

The Justice Department employs more than 5,600 employee and more than 1,000 are attorneys, O'Connor said.

The agency continued receiving the same amount, which represents less than 1% of the division's overall budget, for several years until fiscal year 2023-24, when the increase was nearly cut in half.

The attorney general's office argued the money was well spent. After the Trump administration attempted to withhold public safety funding over California sanctuary cities, the attorney general's office challenged the action, which resulted in nearly $60 million in reimbursements for federal grants.

Trump's upcoming term could very well be just as litigious for California as the president-elect's first four years in office.

America First Legal, a conservative nonprofit led by Stephen Miller, who will serve as Trump's deputy chief of staff for policy and homeland security advisor, sent letters in December to California officials, including Bonta, warning them they could be "criminally liable" for interfering in federal immigration enforcement.

Trump's promise to deport undocumented immigrants when he assumes office has set the stage for a coming legal showdown between California's progressive leaders and the Republican federal administration.

"My office will continue to use the full force of the law and every tool at our disposal to protect the rights of

California's immigrants - and we need staff at these critical locations to do the same," Bonta said in a December statement.

Unknown allocation

There is no deadline to allocate the funding, but lawmakers may be facing pressure with Trump's inauguration scheduled for Jan. 20.

Assemblymember Jesse Gabriel, D-Encino, has proposed legislation to allocate $25 million to the Justice Department for anticipated legal action. The bill specifies the money should go to defending the state from or filing cases against the federal government's actions, but does not explicitly prohibit the Justice Department from using that money to hire private firms to work on the state's behalf.

Gabriel, the Assembly Budget chair, filed a second funding bill for the Justice Department that would provide $500,000 for preparing and tracking money spent on federal litigation.

Sen. Scott Wiener proposed additional funding beyond the attorney general's budget increase. The San Francisco Democrat proposed giving legal aid groups $25 million to help fight deportation and providing cities and counties with $10 million in legal resources, in addition to the $25 million for the Justice Department.

"I have total confidence in the Attorney General's judgment about how best to use public resources - including our talented public servants and private attorneys where appropriate - to defend California's values against the attacks we know are coming," Wiener said in a statement when asked about the possibility of the Justice Department hiring outside counsel.

Newsom's office did not respond to specific questions about how the Justice Department might use the proposed funds.

Brandon Richards, a spokesperson for the governor's office, said in a statement that the legislation is intended to ensure the attorney general's office and other state agencies can respond nimbly to federal overreach.

In a statement, the attorney general's office said, "We're taking the President-elect at his word when he says what he plans to do, and we are ready to take action to hold him accountable if he breaks the law. That being said, we can't preview any potential legal strategy - including how any additional funding made available to us might be allocated."

Outside counsel v. Exxon Mobil

In 2023, California filed a landmark lawsuit against Exxon Mobil and several other oil companies alleging the industry concealed the harms of climate change while misleading consumers over the dangers of burning fossil fuels.

The attorney general's office notified the state attorneys' union, as is required, that it had contracted the private firm Lieff, Cabraser, Heimann & Bernstein to help with the case. Bonta's office said the private firm had extensive prosecuting experience, particularly involving large scale consumer protection suits. The state said it didn't have enough experienced lawyers to handle the complex litigation.

CASE, the attorneys' union, petitioned the State Personnel Board to reject the contract. The union argued Justice Department attorneys, which included their members, should handle the case. Bonta's office failed to prove that he didn't have sufficient, experienced lawyers to handle the case, the union said.

The personnel board sided with the attorney general's office.

"While the DOJ is staffing the Exxon lawsuit with its own team of five highly competent environmental litigators,

sufficient evidence has been presented to establish that the DOJ has never before handled a case of this once-in-a-generation magnitude against an entire industry," a December decision said.

Given the Justice Department is the "foremost state legal entity," personnel board members wrote that they trusted the attorney general's opinion that it lacks the necessary resources to fight the "monster" case against the largest oil companies in the world with nearly unlimited resources without the assistance of Lieff Cabraser.

O'Connor refuted the state's assertion that the Justice Department didn't have the resources to take on Exxon and others. He noted in the year since Bonta's office filed the complaint, the case has moved at a slow pace. Most recently, in May 2024, a San Francisco Superior Court judge combined the state's case with several other lawsuits filed by California counties and cities against the fossil fuel industry.

"It doesn't pass the smell test," O'Connor said. "Its ridiculous to say the DOJ with all of its lawyers can't handle this case."

The union president said in the time since the complaint was filed in September 2023, there has been little activity. He said that proves that there has been more than enough time for the attorney general's office to hire and train more attorneys in the specialized area.

Some of the private attorneys assigned to the case, O'Connor noted, graduated law school in the last three years. While junior attorneys can be capable, he said, it "tends to look more like maximizing billing, then handling a complicated case."

O'Connor also expressed concerns over the cost of hiring Lieff Cabraser on taxpayers. He estimated the law firm could charge up to $1,600 an hour for its attorneys' work. The Justice Department did not provide records showing how much the state paid the private firm by this story's deadline.

"Seems the state would rather overpay outside law firms and waste taxpayer funds, then pay for more attorneys with the requisite experience and fairly compensate their current attorneys for the complex and important work they do," O'Connor said.

The Justice Department did not comment on the contract decision.

In other instances CASE has successfully disputed other contracts between state departments and outside counsel.

In November, the personnel board rejected a contract between the State Controller's Office and a private firm to defend the agency against a wrongful termination lawsuit filed by a former employee.

In 2023, the California Department of Transportation's contract with a technology company to provide consulting services related to the Antlers Bridge replacement project was turned down by the personnel board.

O'Connor said there are instances when a department should hire outside counsel, such as when a conflict of interest arises. But he maintained the climate change case should be handled internally. CASE plans to appeal SPB's decision.

If, or when, California ramps up legal battles with the federal government, CASE said its members are equipped to handle them.

"They should be hiring more attorneys," O'Connor said. "They should be paying our attorneys more."

William Melhado: @williammelhado

Copyright (c) 2025 The Sacramento Bee

- **Citation (apa Style)**

Melhado, W. (2025, January 7). State lawyers worry about outsourcing Trump legal fight.*Sacramento Bee, The (CA)*, p. 1A. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19DF783AE8888E70.